Definition and References for Ultimate Beneficial Owner

Prior to granting access to financial services to the corporate entity on behalf of which you are applying for such access, you are required to identify the ultimate beneficial owners of that corporate entity (such as a company, charity, etc) so these details can be used to conduct reviews in compliance with relevant anti-money laundering legislation.

The corporate entity for which you are making the declaration is referred to as a 'legal entity' in the quoted legislation below. Legal entity shall mean any entity that is regarded in law as a legal person. Unless otherwise stated, any law quoted pertains to Bulgarian law.

When completing this declaration, the following definitions shall apply in accordance with §2 of the supplementary provisions of Bulgarian Measures Against Money Laundering Act (MAMLA), which stipulates the following:

(1) "Beneficial owner" means any natural person who ultimately owns or controls the legal entity and/or natural person on whose behalf and/or for whose account an operation, transaction or activity is being conducted and who fulfil at least one of the following conditions:

a) With respect to the legal entities a beneficial owner is the person, who directly or Indirectly owns a sufficient percentage of the capital stocks, shares or voting rights in that legal entity, including through holding bearer shares or through control by way of other means, with the exclusion of cases of a company whose shares are traded on a regulated market which is subject to the notification requirements in accordance with the law of the European Union or of equivalent international standards, ensuring adequate level of transparency with respect to ownership.

b) An indication for direct ownership is present when a natural person owns stock capital or shares of at least 25 percent of a legal entity.

c) An indication for indirect ownership is present when at least 25 percent of the stock capital or shares in a legal entity belongs to another legal entity which is under the control of the same natural person or to multiple legal entities which ultimately are under the control of the same natural person.

d) With respect to the trust, including trusts, custodian funds and other similar foreign legal arrangements, established and existing in accordance with the law of jurisdictions, admitting such forms of trust, the beneficial owner is:

i. the settlor
ii. the trustee
iii. the protector, if any, or
iv. the beneficiary or the class of beneficiaries, or
v. the person in whose main interest the trust is set up or operates, when the natural person benefiting from it, has yet to be determined, or
vi. any other natural person exercising ultimate control over the trust by means of direct or indirect ownership or by other means.

(2) In the case of foundations and legal arrangements similar to trusts, the natural person(s) holding equivalent or similar positions to those referred to in (1)d above.

(3) Any natural person who is a nominee director, secretary, shareholder or owner of the capital of a legal entity, if another beneficial owner is identified, shall not be considered a beneficial owner.

(4) "Control" means the control as per §1c of the supplementary provisions of the Commerce act, as well as every opportunity, which, without being an indication for direct or indirect holding, entitles for the exercise of decisive influence over the legal entity for decision making for determination of the managing and control boards, reorganization of the legal entity, termination of its activity and other matters of significant importance for its activity.

(5) An indication for "indirect control" is the exercise of ultimate effective control over the legal person or other legal entity through the exercise of rights via third parties, including, but not limited to those provided by way of authorization, contract or other type of transaction as well as via other legal arrangements, ensuring the opportunity to exercise decisive influence by the intermediary of third parties.

(6) When, after exhaustion of all other possible means, a beneficial owner according to paragraph (1) cannot be identified, or when there are suspicions, that the person identified is not the beneficial owner, the beneficial owner shall be considered to be the natural person exercising the position of senior managing official. The obliged persons shall maintain a documentation for the activities undertaken with the purpose of identifying the beneficial owner under paragraph (1).

The Person making this Declaration

I, the undersigned: Click or tap here to enter text.

Official Personal ID number / unique number to verify identity Click or tap here to enter text.

Date of birth: Click or tap to enter a date.

Place of birth: Click or tap here to enter text.
(Country and City)

Nationality(ies): Click or tap here to enter text.

Address: Click or tap here to enter text.

in my capacity as (tick all that apply):

☐ **Legal representative of** Click or tap here to enter text. (legal entity full name and type of legal entity)

☐ **Proxy for** Click or tap here to enter text. (please attach proof of proxy)

The Legal Entity registered in Click or tap here to enter text. (jurisdiction)

with Company ID / registration number: Click or tap here to enter text.

hereby DECLARE that

1. **the information in this declaration is true to the best of my knowledge, and that,**
2. **I have taken due care to ensure that the information contained in this declaration is correct and complete, and that**
3. **I am fully aware of my criminal liability for declaring false, inaccurate or misleading information.**
4. **I am not a Politically Exposed Persons (PEPS), family member of PEP or close associate**

City: Click or tap here to enter text.

Date of Declaration: Click or tap to enter a date.

Signature: _____

BEGINNING OF DECLARATION

I. Ultimate Beneficial owner(s) of the legal person/ legal entity represented by me is/are the following natural person(s):

Complete for each UBO that is a Natural Person

Full name Click or tap here to enter text.

Official personal ID number / unique number to verify identity: Click or tap here to enter text.

Date of birth: Click or tap to enter a date.

Place of birth: Click or tap here to enter text.
(Country and City)

All nationalities: Click or tap here to enter text.

Address of residence: Click or tap here to enter text.

Tick all valid statements from the list below:

☐ A person, who directly or indirectly holds sufficient percentage of the shares, capital stock or voting rights, including trough holding bearer shares (>=25%)

☐ Person, exercising control **(**particular case to be indicated)

"Control" within the meaning of this law is present when a natural or legal person (controller):
1. holds more than half of the votes in the general meeting of another legal entity, or
2. has the right to appoint more than half of the members of the management or supervisory body of another legal entity and at the same time is a shareholder or partner in that legal entity, or
3. has the right to exercise decisive influence over another legal entity by virtue of a contract concluded with it or by virtue of its articles of association or articles of association, or
4. is a shareholder or partner in another legal entity and by virtue of a contract with other shareholders or partners independently controls more than half of the votes in the general meeting of this legal entity.

☐ Person, exercising decisive influence in decision making for determination of the managing and control boards, reorganization, termination of activity and other matters of significant importance of the activity

☐ Person, exercising final effective control trough exercising the rights through third parties, including but not limited to those provided by way of authorization, contract or other type of transaction, as well as via other legal arrangements, ensuring an opportunity for exercise of decisive influence through third parties

☐ (underline the applicable category); settlor, trustee, protector, beneficiary or person in whose main interest the trust is set up or operates or person exercising ultimate control over the trust by means of direct or indirect ownership or by other means or person, holding a position, equivalent or similar with previously listed

☐ Person on whose behalf and/or for whose account an operation is carried out, transaction or activity and who fulfills any of the conditions listed in (1), (2) and (3) in Definitions and References

☐ Person, holding the position of senior managing official, when another person cannot be identified as a beneficial owner

☐ Other form of Beneficial Ownership – please explain Click or tap here to enter text.

Description of rights held Click or tap here to enter text.

II. Legal persons or other legal entities, through which a control is exercised directly or indirectly over the legal person/legal entity

Complete for each UBO that is a Legal Entity

A. Legal person/legal entities through which a control is exercised directly: Click or tap here to enter text.

Register office (country, city, municipality): Click or tap here to enter text.

Address: Click or tap here to enter text.

Registered with: Click or tap here to enter text.

Company ID / Registration Number: Click or tap here to enter text.

Representatives

Mode of representation: Click or tap here to enter text.
(jointly, separately or other)

1. **Full name:** Click or tap here to enter text.

   Official personal ID number / unique personal identification number: Click or tap here to enter text.

   Date of birth: Click or tap to enter a date.

   Place of birth: Click or tap here to enter text.
   (Country and City)

   All nationalities: Click or tap here to enter text.

   Address of residence: Click or tap here to enter text.

2. **Full name**

   Official personal ID number / unique personal identification number: Click or tap here to enter text.

   Date of birth: Click or tap to enter a date.

   Place of birth: Click or tap here to enter text.
   (Country and City)

   All nationalities: Click or tap here to enter text.

   Address of residence: Click or tap here to enter text.

Add more Representatives as required

B. Legal person/legal entities through which a control is exercised indirectly:

Register office (country, city, municipality): Click or tap here to enter text.

Address: Click or tap here to enter text.

Registered with: Click or tap here to enter text.

Company ID / Registration Number: Click or tap here to enter text.

Representatives

Mode of representation: Click or tap here to enter text.
(jointly, separately or other)

1. Full name Click or tap here to enter text.

Official personal ID number or other unique personal identification number: Click or tap here to enter text.

Date of birth: Click or tap to enter a date.

Place of birth: Click or tap here to enter text.
(Country and City)

All nationalities: Click or tap here to enter text.

Address of residence: Click or tap here to enter text.

2. Full name Click or tap here to enter text.

Official personal ID number or other unique personal identification number: Click or tap here to enter text.

Date of birth: Click or tap to enter a date.

Place of birth: Click or tap here to enter text.
(Country and City)

All nationalities: Click or tap here to enter text.

Address of residence: Click or tap here to enter text.

Add more Representatives as required

END OF DECLARATION